

Franciscus Dylan Rosario
7624 Melody Drive
Rohnert Park, CA 94928
Tel: 650.488.7510
E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

**FRANCISCUS DYLAN ROSARIO,
PLAINTIFF,**

v.

Subhi Abdelhalim; CSAA Insurance Exchange; Phillips,
Spallas & Angstadt LLP; Priya D. Navaratnasingham;
Alberto Reyna; Michael R. Chambers; Carbone, Smith &
Koyama; and Does 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

**EX PARTE APPLICATION FOR
ORDER SHORTENING TIME ON
MOTION UNDER CCP §425.16(g);
DECLARATION OF PLAINTIFF;
[PROPOSED] ORDER**

(Cal. Rules of Court, rules 3.1200–3.1207; Local Rules of
San Francisco Superior Court, rule 9)

Anti-SLAPP Hearing:

Date: May 12, 2026

Time: 9:30 a.m.

Dept.: 301

Judge: Hon. Christine Van Aken

Complaint filed: Dec. 23, 2025

FAC filed: Feb. 25, 2026

1 **EX PARTE APPLICATION FOR ORDER SHORTENING TIME**

2 TO ALL PARTIES AND THEIR ATTORNEYS OF RECORD:

3 PLEASE TAKE NOTICE that on **Monday, April 27, 2026, at 11:00 a.m.**, or as soon thereafter
4 as the matter may be heard, in Department 301 (ex parte calendar) of the above-entitled Court,
5 Plaintiff Franciscus Dylan Rosario will and hereby does apply **ex parte** for an **order shortening**
6 **time** for hearing of Plaintiff's contemporaneously-filed **Motion for Order Permitting Specified**
7 **Discovery under Code of Civil Procedure section 425.16(g)**.

8 Plaintiff requests that the Motion be heard on **April 30, 2026**, or, in the alternative, **May 1, 2026**,
9 to ensure that, if the Motion is granted, Plaintiff can obtain the narrowly specified discovery before
10 the **May 12, 2026** hearing on Defendants' Special Motion to Strike.

11 This application is made on the grounds that:

- 12 1. The Code Civ. Proc., § 425.16(g) Motion cannot meaningfully be heard on regular (16-court-
13 day) notice given the May 12, 2026 anti-SLAPP hearing and the April 24, 2026 filing date;
- 14 2. Absent an order shortening time, Plaintiff will suffer **irreparable harm** in the form of loss
15 of the opportunity to obtain evidence necessary to the prong-two record (Cal. Rules of Court,
16 rule 3.1202(c));
- 17 3. Defendants have been given notice of this application, in writing, no later than **10:00 a.m. on**
18 **April 23, 2026**, in compliance with Cal. Rules of Court, rule 3.1203; and
- 19 4. There is no other readily available remedy.

20 This application is based upon this Application, the Declaration of Plaintiff below, the [Proposed]
21 Order, the accompanying Code Civ. Proc., § 425.16(g) Motion papers, the pleadings and papers
22 on file, and such further argument as may be presented at the hearing.

1 **DECLARATION OF PLAINTIFF FRANCISCUS DYLAN ROSARIO**

2 I, Franciscus Dylan Rosario, declare:

- 3 1. I am the Plaintiff, appearing in pro per. I have personal knowledge of the matters stated
4 herein.
- 5 2. Defendants' Special Motion to Strike is set for hearing on **May 12, 2026, 9:30 a.m., Depart-**
6 **ment 301.**
- 7 3. Today, April 24, 2026, I am filing a Code Civ. Proc., § 425.16(g) Motion for Order Permit-
8 ting Specified Discovery, narrowly limited to a 2-hour authentication deposition of declarant
9 O'Connell and 8 RFPs confined to documents referenced in his declarations.
- 10 4. Regular-notice filing of the Code Civ. Proc., § 425.16(g) Motion would set the earliest hearing
11 past the May 12 anti-SLAPP hearing, defeating the Motion's purpose. Good cause therefore
12 exists to shorten time under Cal. Rules of Court, rule 3.1202(c).
- 13 5. **Irreparable harm / Cal. Rules of Court, rule 3.1202(c) showing.** Without shortened time:
14 (a) the Code Civ. Proc., § 425.16(g) Motion will be untimely as a practical matter; (b) I
15 cannot test foundation / personal knowledge / authentication of the Declaration of Tyler J.
16 O'Connell; (c) I cannot meet my prong-two burden under *Sweetwater* (2019) 6 Cal.5th 931
17 with competent, admissible evidence; and (d) the SLAPP motion would be decided on an
18 unrebutted evidentiary record. That is the classic definition of irreparable harm in this context.
- 19 6. **CRC 3.1203 notice.** On **April 23, 2026, at or before 10:00 a.m.**, I served written notice
20 of this ex parte application on Defendants' counsel of record by electronic service, stating
21 (i) the nature of the ex parte relief sought, (ii) the date, time, and department, and (iii) that
22 opposition could be made in writing or in person. A true and correct copy of that notice email
23 is attached to the concurrently-filed Proof of Electronic Service.
- 24 7. **No prior application.** I have made no prior ex parte application for the same relief in this
25 matter. (Cal. Rules of Court, rule 3.1202(a).)
- 26 8. **Why no stay violation.** The specified-discovery Motion is not itself discovery; it is a noticed
27 motion under Code Civ. Proc., § 425.16(g). No discovery has been or will be served unless
28 and until the Court enters the requested order. This sequencing avoids any Code Civ. Proc.,

1 § 425.16(g) stay violation.

2 9. **Proposed schedule.** Hearing on the specified-discovery Motion on April 30 or May 1, 2026;
3 if granted, RFPs served same day, 10-day shortened response, deposition completed on or
4 before May 8, 2026, four court days before the May 12 hearing.

5 I declare under penalty of perjury under the laws of the State of California that the foregoing is
6 true and correct. Executed this 24th day of April, 2026, at Rohnert Park, California.

Dated: April 24, 2026



/s/ *Franciscus Dylan Rosario*

FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

7624 Melody Drive
Rohnert Park, CA 94928
Tel: 650.488.7510
E: soltrinox@gmail.com

[PROPOSED] ORDER SHORTENING TIME

Good cause appearing, the Court **ORDERS**:

1. Time for hearing on Plaintiff's Motion for Order Permitting Specified Discovery (Code Civ. Proc., § 425.16(g)) is **SHORTENED**.
2. The Motion shall be heard on _____, 2026, at _____ in Department 301.
3. Any written opposition shall be filed and served no later than _____, 2026; any reply no later than _____, 2026.

Dated: _____

Hon. Christine Van Aken
Judge of the Superior Court